

Plaintiff meets its burden as the moving party to establish entitlement to judgment as a matter of law, shifting the burden to defendant to establish a triable issue of material fact. As defendant filed no opposition to the present motion, defendant fails to meet its burden and the evidence presented is unopposed on the record. (Code Civ. Proc. § 437c (c); *Aguilar, supra*, 25 Cal.4th at 850.)

Based on the foregoing, plaintiff's motion for summary judgment is granted.

3. M-CV-0094075 Jin, Yurong v. Li, Yuejia

Motion to Stay the Execution of Judgment

Appearance of the parties is required on **May 12, 2026 at 8:30 a.m. in Department 42.**

4. M-CV-0095721 Marie E Gallagher 2003 Trust v. Gallagher, Richard

Motion to Set Aside Default and Default Judgment

Defendant Richard Gallagher moves for a stay in execution of judgment and asks that default and default judgment be set aside. The court deemed this motion to be a motion to set aside pursuant to Code of Civil Procedure section 473(b) by its order scheduling this hearing. (Ruling on ex parte application, Apr. 29, 2026.) Plaintiff opposes the motion.

The court may “upon any terms as may be just” set aside default due to the moving party’s “mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A motion to set aside default must be made “within a reasonable time, in no case exceeding six months” from the entry of default. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence and must bring the motion within 180 days. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant’s motion is timely brought within one month of entry of default and default judgment. As to grounds for relief, defendant declares he was never served with the summons and complaint. A proof of service filed March 3, 2026 shows defendant Gallagher was served by substitute service pursuant to Code of Civil Procedure section 415.20(b) by leaving a copy of the summons and complaint with Gregory Sansenbach on March 1, 2026 and by mailing the same on March 2, 2026. Defendant Gallagher argues that this service was not effective due to the disability of Sansenbach. While the court has insufficient information to determine the effectiveness of this service, it does appear to the court the service did not result in actual notice to defendant. Defendant’s failure to timely respond to the complaint constitutes sufficient “mistake, inadvertence, surprise, or excusable neglect” within the meaning of Code of Civil Procedure section 473(b). Moreover, the court observes that plaintiff filed a notice of errata on February 10, 2026, supplementing the complaint. There is no evidence in the court’s file the notice of errata was ever served on defendants.

Based on the foregoing, the motion is granted. Default of defendant Gallagher entered March 30, 2026 and default judgment entered April 3, 2026 are set aside. The writ of